

23TRCV01206 23TRCV01206

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-08-27

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Case Number: 23TRCV01206 Hearing Date: August 27, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

STACY COLLINS

, et al.;

Plaintiffs,

vs.

MARRIOTT

INTERNATIONAL, INC.

, et al.;

Defendants.

Case

No.:

23TRCV01206

Hearing

Date:

August
27, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

defendant

residence inn by marriott, llc's motion TO ENFORCE SANCTIONS ORDER AGAINST
PLAINTIFF STACY COLLINS

MOVING PARTY: Defendant, Residence Inn by
Marriott, LLC

RESPONDING

PARTY: No opposition.

(1)

Defendant

Residence Inn by Marriott, LLC's Motion to Enforce
Sanctions Order Against Plaintiff Stacy Collins is DENIED pursuant to Code of
Civil Procedure section 2023.030.

The Court considers the moving papers filed on June 1, 2026. To date, no opposition brief has been filed.

BACKGROUND

Factual Background

On April 18, 2023, plaintiffs
Stacy Collins, La Tonia Jackson, La Kita Elliott, Dominique Green, Keenan Louis
Jr., KC Louis, Kasen Louis, Lilly Collins, and Tariq Bealey (collectively,
"Plaintiffs") filed a Complaint against defendants Marriott International,
Inc., Residence Inn by Marriott Los Angeles Torrance/Redondo Beach, Brett

Morales, and DOES 1 through 20.

Subsequently, on October 7, 2024, Plaintiffs filed a First Amended Complaint ("FAC") against the same defendants. On October 14, 2024, Plaintiffs filed an amendment to the Complaint, naming Residence Inn by Marriott, LLC as DOE 1. Furthermore, on February 10, 2025, Plaintiffs filed a Second Amended Complaint ("SAC") against defendants Marriott International, Inc., Residence Inn by Marriott Los Angeles Torrance/Redondo Beach, Brett Morales, Residence Inn by Marriott, LLC, Torrance Inn JV, LLC, and DOES 3 through 30 (collectively, "Defendants").

On May 30, 2025, Plaintiffs filed a Third Amended Complaint ("TAC") against Defendants. The TAC includes the following causes of action: (1) Assault and Battery; (2) Violation of Civil Code section 52.1, the Tom Bane Civil Rights Act; (3) Negligence; (4) Negligent Hiring, Training, Supervision, and/or Retention of Employees; and (5) Intentional Infliction of Emotional Distress.

On August 1, 2025, Residence Inn by Marriott, LLC ("Residence Inn") served a set of discovery requests on Stacy Collins, including: (1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; (3) Request for Production of Documents, Set One; and (4) Request for Admissions, Set One. (Declaration of Saleem A. Hawatmeh ("Hawatmeh Decl."), ¶ 3, Exh. 1.)

Absent any extensions, the responses were due by September 2, 2025. (Hawatmeh Decl., ¶ 3.) However, Residence Inn extended several deadlines for Stacy Collins, resulting in a new deadline of October 23, 2025, on the condition that Stacy Collins provide substantive, verified responses without objection. (Hawatmeh Decl., ¶¶ 4-6, Exh. 2.)

On October 28, 2025, Stacy Collins' counsel notified Residence Inn that responses would be submitted no later than October 30, 2025. (Hawatmeh Decl., ¶ 7, Exh. 2.) In light of this, Residence Inn conveyed its intention to file motions to compel and request sanctions if Stacy Collins' responses continued to be delayed. (Hawatmeh Decl., ¶ 7, Exh. 2.)

On November 4, 2025, Stacy

Collins' counsel informed Residence Inn that responses would be provided

without objection by November 5, 2025. (Hawatmeh

Decl., ¶ 8, Exh. 2.) However, no

responses were provided, nor did Stacy Collins request additional extensions. (Hawatmeh Decl., ¶ 8, Exh. 2.) Consequently, on November 8, 2025, Residence

Inn communicated its intention to file motions to compel. (Hawatmeh Decl., ¶ 9, Exh. 2.)

On December 10 and 11, 2025,

Residence Inn filed four motions to compel, which encompassed requests for

monetary sanctions. (Hawatmeh Decl., ¶ 10.) On March 12, 2026, the Court granted the

motions and ordered Stacy Collins to pay \$2,320.00 in monetary sanctions to

Residence Inn's counsel by April 9, 2026.

(Hawatmeh Decl., ¶ 12, Exh. 3.)

Subsequently, on March 13,

2026, Residence Inn served the Notice of Ruling pertaining to these motions. (Hawatmeh Decl., ¶ 13, Exh. 4.)

On April 10, 2026, Residence

Inn's counsel reached out to Stacy Collins' counsel to ascertain the status of

the ordered sanctions. (Hawatmeh Decl.,

¶ 14, Exh. 5.) Stacy Collins' counsel

stated that they would have an individual named "Ilan" provide an update

regarding the status of the overdue sanctions.

(Hawatmeh Decl., ¶ 14, Exh. 5.) However,

Residence Inn's counsel did not receive any updates from Ilan or any other member

of Stacy Collins' counsel concerning the sanctions. (Hawatmeh Decl., ¶ 14.)

On May 21, 2025, during Stacy

Collins' deposition, Residence Inn's counsel posed questions regarding Stacy

Collins' awareness of the outstanding sanctions order. (Hawatmeh Decl., ¶ 15.) Stacy Collins' counsel directed Stacy Collins

not to read the sanctions order, and Stacy Collins made no statements regarding

the sanctions order. (Hawatmeh Decl., ¶

15.)

LEGAL STANDARD

"The

court may impose a monetary sanction ordering that one engaging in the misuse

of the discovery process, or any attorney advising that conduct, or both pay

the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civil Proc., § 2023.030, subd. (a).)

DISCUSSION

Residence Inn moves the Court to (1) enforce the Court order issued on March 12, 2026, and to compel Stacy Collins to pay the sum of \$2,320.00 immediately, (2) issue an order to show cause regarding contempt of court should Plaintiff fail to comply with the enforced sanctions order, and (3) grant any additional orders that the Court deems appropriate. (Motion, p. 5:2-7.) The Court DENIES these requests.

Enforcement

The Court first notes that Stacy Collins remains under order to pay the monetary sanctions of \$2,320.00. It appears that Plaintiff continues to be in violation of the March 12, 2026, order. Nonetheless, the proper mechanism for enforcing an order for monetary sanctions is through a writ of execution.

"[M]onetary sanction orders are enforceable through the execution of judgment laws." (Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615 (Newland).)

Monetary sanction orders "have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction."

(Ibid.) Here, Residence

Inn seeks to enforce the Court's March 12, 2026 Minute Order, which imposes \$2,320.00 monetary sanctions against Stacy Collins. As articulated in Newland, this imposition of sanctions is a monetary judgment entered against Stacy Collins. (Newland, supra, 40 Cal.App.4th at p. 615.) The proper

enforcement method of such a money judgment is to proceed pursuant to the execution of judgment laws articulated within Code of Civil Procedure sections 680.010 through 724.260. (Code Civ. Proc., §§ 680.010, et seq.)

Order to Show Cause re: Contempt

The Court declines to issue an order to show cause regarding contempt due to Residence Inn's failure to provide a relevant legal analysis that would demonstrate the appropriateness of such an order.

When the contempt at issue is "indirect," a more elaborate procedure is followed to notify the person(s) sought to be charged and allow them an opportunity to be heard. (Code Civ. Proc., §§ 1211–1218; see also *Hanson v. Superior Court*, supra, 91 Cal.App.4th at p. 81.) "An affidavit must be presented to the court stating the facts constituting the contempt, an order to show cause must be issued, and hearing on the facts must be held by the judge." (*Arthur v. Superior Court of Los Angeles County* (1965) 62 Cal.2d 404, 407-408.) Since the acts involved did not occur in the court's presence, the affidavit must cover each element of the commission of the contempt. (Code Civ. Proc., § 1211.5.) This affidavit serves as the "complaint" in an indirect contempt proceeding and must contain factual allegations based on firsthand knowledge. (*Lyon v. Superior Court of Los Angeles County* (1968) 68 Cal.2d 446, 452 (*Lyon*).)

In indirect contempt proceedings based on disobedience of a prior court order, a valid judgment must meet "strict requirements." Each of the following must be established: (1) the rendition of a valid court order; (2) actual knowledge of the order; (3) ability to comply; and (4) willful disobedience of the order. (*Conn v. Superior Court* (1987) 196 Cal.App.3d 774, 784 [repeated failures to turn over documents as ordered].) Upon receipt of the affidavit, the court usually issues an order to show cause ("OSC") why the person should not be held in contempt. (Code Civ. Proc., § 1212.)

As Residence Inn did not provide the relevant case law or effectively apply it to the pertinent facts, the Court will not issue an order to show

cause. Accordingly, the Residence Inn's motion is DENIED.

ORDERS

1) Defendant

Residence Inn by Marriott, LLC's Motion to Enforce Sanctions Order Against Plaintiff Stacy Collins is DENIED.

2) Residence

Inn is ordered to give notice of this Court's ruling.

IT

IS SO ORDERED.

DATED: August 27, 2026

Tamara

Hall

Judge

of the Superior Court